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Tentative Ruling

Re: ***In re Jacob Cox***
Superior Court Case No. 25CECG01228

Hearing Date: September 1, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

Petitioner Jessica Cox and counsel of record are directed to personally appear. Claimant Jacob Cox is excused from appearing.

Explanation:

Petitioner Jessica Cox ("Petitioner") seeks review of a proposed compromise of a claim by claimant Jacob Cox ("Claimant") for a third time. Previously, the court identified certain issues with medical expenses, and a claim by Petitioner against Claimant's compromise for lost wages. In what the court can only conclude is a bold adjustment, Petitioner's claim for lost wages in the amount of \$3,240.00 has disappeared, and the total settlement has been reduced from its prior reported \$30,336.15, to \$25,966.23. No attempt to explain the reduction was included.

Neither has there been any attempt to explain why the previously reported \$30,336.15 reflects the value of the claim, policy limits, or any combination of reasons. Counsel has submitted that policy limits in this action are \$30,000.00. No indication was made that the insured was contributing previously, and no indication is given now as to why \$25,966.23, which is under policy limits is appropriate.

In light of the history of the claims against Claimant's compromise, and of the unexplained reduction of the compromise amount, Petitioner and counsel of record are directed to personally appear and give explanation as to the reduction in Claimant's compromise.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 31, 2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Brown v. The Arc Fresno/Madera Counties**
Superior Court Case No. 26CECG00287/COMPLEX

Hearing Date: September 1, 2026 (Dept. 403)

Motion: Motion to Compel Arbitration

Tentative Ruling:

To continue to Wednesday, September 9, 2026, 3:30 p.m. in Department 403.

Explanation:

On May 28, 2026, the parties filed a stipulation for order which was entered as an order by the court on June 15, 2026. The order acknowledged the parties' intent to pursue private arbitration and granted leave for plaintiff Mark Anthony Brown ("Plaintiff") to file a proposed First Amended Representative Action Complaint. Upon the filing of the amended pleading, and the filing of an answer thereto, all dates on calendar would be vacated, and the matter would be stayed.

Plaintiff has now filed an amended pleading. However, defendant The Arc Fresno/Madera Counties has yet to file an answer. Accordingly, these dates remain on calendar, and the action is not yet stayed. (June 15, 2026, Order, Item 6.) The matter is once again continued.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 31, 2026.
(Judge's initials) (Date)